

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Robert E. Law
Judge of the Superior Court
County of Riverside
4100 Main Street
Riverside, CA 92501

Re: Martinez, Jacob Antonio
CDC No.: AF8051
Case No.: RIF154562
Date of Sentence: December 22, 2010

Dear Honorable Robert E. Law:

The purpose of this letter is to provide the court with authority to resentence Jacob Antonio Martinez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Martinez was sentenced in 2010, and was convicted of section 245, subdivision (a)(1), Assault w/Deadly Weapon. The trial court sentenced inmate Martinez on December 22, 2010. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Martinez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Martinez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERMAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Felony Information

cc: Honorable Becky Lynn Dugan, Riverside County Presiding Judge
Riverside District Attorney
Public Defender

A78051

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: RIVERSIDE			FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF RIVERSIDE APR 08 2013 <i>d. Nuñez</i>		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JACOB ANTONIO MARTINEZ		DOB: 08-16-90			RIF154562 -A
AKA:					-B
CII NO.: A29415366		☐ NOT PRESENT			-C
BOOKING NO.: 200955580		☒ AMENDED ABSTRACT		-D	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		SECOND			
DATE OF HEARING 12-22-10	DEPT. NO. 55	JUDGE ROBERT E. LAW			
CLERK K. LARSON	REPORTER T. DICARO	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE JON BRANDON		COUNSEL FOR DEFENDANT ☐ APPTD. DPD-AC. JONES			

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VOLUNT	CONSECUTIVE 1/3 NON-VOLUNT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (year/months)	664 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
2	PC	245(A)(1)	ASSAULT W/DEADLY WEAPON	2009	10-27-10	X			M							6	0
3	PC	186.22(A)	CRIMINAL STREET GANG	2009	10-27-10	X			M						X		
4	PC	12021(A)(1)	CONVICTED FELON	2009	10-27-10	X			M			X				1	4
5	PC	12020(A)(1)	MANUFACTURE/IMPORT	2009	10-27-10	X			M						X		
6	PC	186.22(A)	CRIMINAL STREET GANG	2009	10-27-10	X			M						X		
					- -												

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
2	PC 12022.7(a)	3	PC 186.22(B)	10			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **20** **4**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: JACOB ANTONIO MARTINEZ

RIF154562

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ Amount to be determined to victim(s)* Restitution Fund
Case B: \$ Amount to be determined to victim(s)* Restitution Fund
Case C: \$ Amount to be determined to victim(s)* Restitution Fund
Case D: \$ Amount to be determined to victim(s)* Restitution Fund

* Victim name(s), if known, and amount breakdown in item 11, below. * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case B: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case C: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case D: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$200.00 per PC 1465.8.

e. Criminal Conviction Assessment: \$150.00 per GC 70373.

10. TESTING a. Compliance with PC 296 verified b. AIDS per PC 1202.1 c. other (specify):

11. Other orders (specify):

DEFENDANT IS SENTENCED PURSUANT TO 667(E)(1) PC.

12. IMMEDIATE SENTENCE:

Probation to prepare and submit
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HISPANIC

13. EXECUTION OF SENTENCE IMPOSED:

- a. at initial sentencing hearing.
b. at resentencing per decision on appeal.
c. after revocation of probation.
d. at resentencing per recall of commitment. (PC1170(d).)
e. other (specify): HEARING HELD ON 03/26/13

RE LETTER DATE 1/31/13 FROM ATT. D. LEROY

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	420	366	54 ☒ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
12-22-10		DMH	CDCR CRC

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE
ANUNEZ

DATE

04-08-13